Wilāyat al-Faqīh as the Constitutional Cornerstone of the Islamic Republic of Iran

From Shiʻi Quietism to Theocratic Constitutionalism

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LAW 2942 1 Islamic Law

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Muslims:

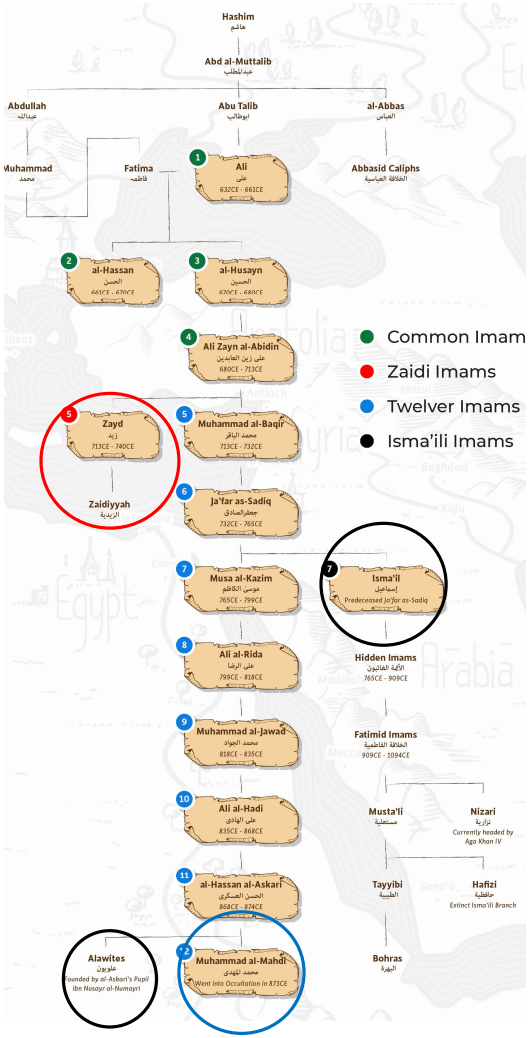
Sunni Muslims 85–90% (roughly 1.7–1.8 billion)
Shia Muslims 10–15% (roughly 200–300 million)

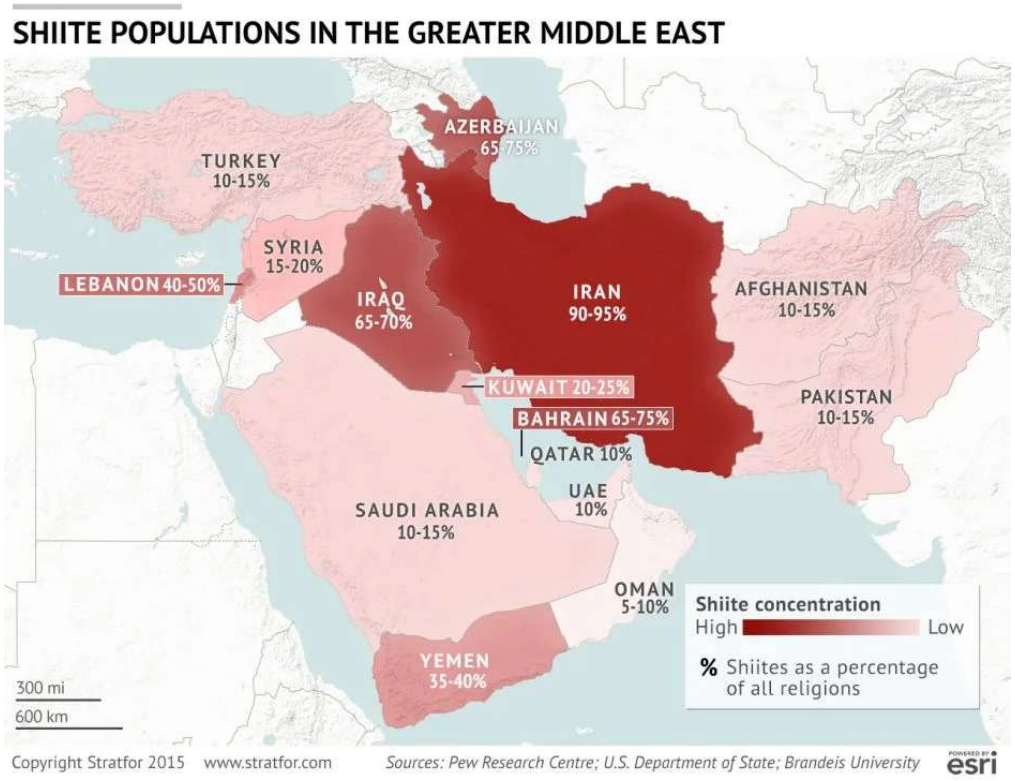
Shi‘a comes from *Shi‘at ‘Ali* (as opposed to *Shi‘at ‘Mu‘awiya*)

What is Twelver Shi‘ism?

- Largest branch of Shi‘a Islam (85–90%)
  - Compare to:
    - Zaydis (3%) primarily in Yemen
    - Ismaili (10-15%)
- Believe in 12 divinely appointed Imams
- Final Imam: Muhammad al-Mahdi
- Entered occultation (ghayba) in 874 CE
- Will return as the Mahdi at the end of time to establish justice

Key legal implication: No infallible Imam present → authority problem.





Where Are Twelver Shi'a Located?

Approximate global distribution:

- **Iran** – 90–95% of population (state religion)
- **Iraq** – 65–70%
- **Bahrain** – 65–75%
- **Azerbaijan** – 65–75%
- **Lebanon** – ~30–35% (?)

Note:

Yemen – Zaydi

Syria – Alawite

Turkey – Alawite and Alevi

Major Shiʻi Centers of Learning

These are not just seminaries — they are centers of religious authority

- **Najaf (Iraq)**
  - Shrine of Imam Ali
  - Historically dominant seminary (ḥawza)
  - Grand Ayatollahs: al-Khuʻi, al-Sistani
- **Qom (Iran)**
  - Rose to prominence in 20th century
  - Base of Khomeini
- **Lebanon (Jabal Amel tradition)**
  - Influential juristic lineage

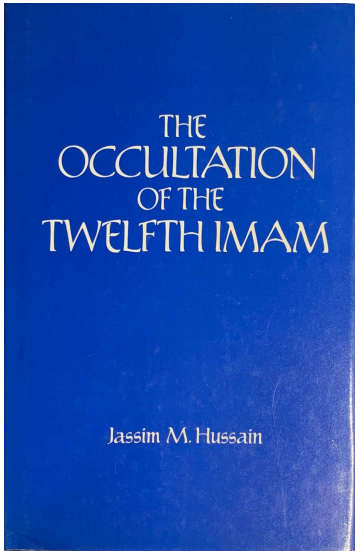
The Problem of the Occultation

Since 874 CE:

- The 12th Imam is in occultation.
- No infallible political ruler.

Traditional view:

- Full political legitimacy belongs only to the Imam.
- Therefore: political authority is defective until his return.



Classical Shi‘i Quietism (874 CE – ?)

After the Occultation of the 12th Imam (874 CE):

- Political authority viewed as incomplete without the Imam
- Clergy avoided direct state power
- Focused on:
  - Judiciary
  - Religious law (fiqh)
  - Community guidance

Governments were tolerated but not fully legitimate.

Reasons:

- Theological: Imam in occultation. No just ruler.
- Sociological: Shi‘a were often minorities.

Safavid Period (1501–1736) — Major Turning Point

- Iran formally converts to Twelver Shiʻism
- First large-scale Twelver Shiʻi state in history
- Safavids adopt Shiʻism partly to distinguish themselves from Sunni Ottoman Empire

Because Iran lacked enough trained Shiʻi scholars:

- Scholars were imported from:
  - Jabal Amel (Lebanon)
  - Bahrain
  - Southern Iraq

Clergy gain institutional power — but:

- No developed doctrine of full clerical sovereignty yet
- The Shah remained ruler; clerics legitimized but did not rule.

Qajar & Constitutional Revolution (1906)

Clergy divided:

- Some supported constitutionalism
- Others rejected separation of religion and state

Key debates:

- Is sovereignty divine or popular?
- Can legislation be man-made?

Pahlavi Period (1925–1979)

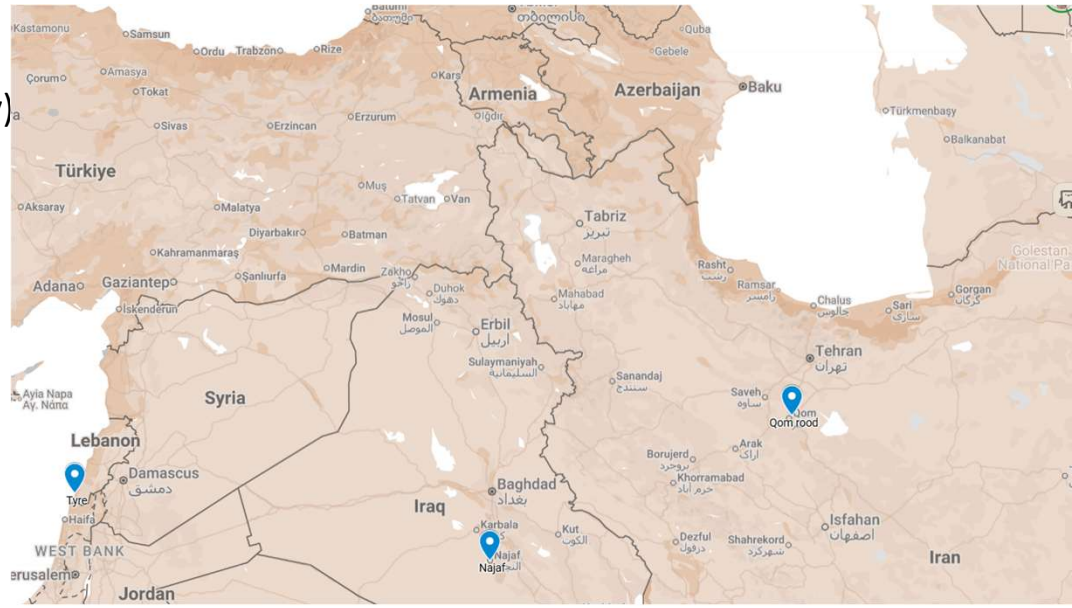
- Aggressive secular modernization
- Marginalization of clergy
- Expansion of centralized state power
- Repression of religious institutions

➞ Creates conditions for a radical rethinking of clerical authority

➞ Sets stage for Khomeini's theory of Wilāyat al-Faqīh

Mainstream Quietist Assumptions (874 CE – ?)

- **Imam's absence delegitimizes full sovereignty**
- Political rule is inherently incomplete until the Mahdi returns
- Avoidance of direct control over public/state law
- Development of **marjaʿiyya** (religious reference authority)



Marjaʿiyya Model

- Scholarly authority, not political sovereignty
- Legal pluralism (multiple marājiʿ issuing opinions)
- Moral influence over society
- Guidance, not governance

Clergy functioned as:

- Judges
- Religious/ legal scholars
- Community leaders

Not rulers.

Some clerics (e.g., Hojjatiyya Society) even argued:

- Political activism may delay the Mahdi's return
- Corruption increases conditions for his return
- Preferred non-intervention in state power

WHAT IS WILĀYAT AL-FAQĪH?

Wilāya - guardianship, authority, governance

Different types of guardianships recognized under Muslim Personal Law. Guardianship:-

- of a person
- in marriage
- of property

Wilāya - guardianship, authority, governance

Faqīh - jurist qualified in Islamic law

So:
Wilāyat al-Faqīh = Guardianship/Authority of the Jurist

Both Sunni and Shiʻi traditions recognize some juristic authority.

- **Wilāya Maḥdūda** (aka Wilāyat Ḥisbiyya) (Limited Guardianship)
- **Wilāya Qaḍāʾiyya** (Judicial Authority)

Example:

- Guardianship over:
    - Orphans
    - Mentally incapacitated
    - Awqaf (religious endowments)
    - Judicial authority
- Traditional scope:
    - Issuing fatwas
    - Judicial rulings
    - Supervising religious funds
    - Protecting vulnerable persons

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- This does NOT include:
  - Full political sovereignty
  - State command
  - Military leadership

Wilāyat ʿĀmma (General Guardianship)

- Broader public authority during the Imam's absence
- Jurists collectively oversee public affairs
- Authority extends beyond orphans and courts
- Rooted in narrations delegating ruling functions to fuqahāʾ

But:
- Not necessarily direct state rule
- Often supervisory rather than executive
- Still falls short of sovereign governance

Historically associated with:
- Safavid-era jurists
- Ahmad al-Narāqī (1771-1829)
- Doctrinal stepping stone

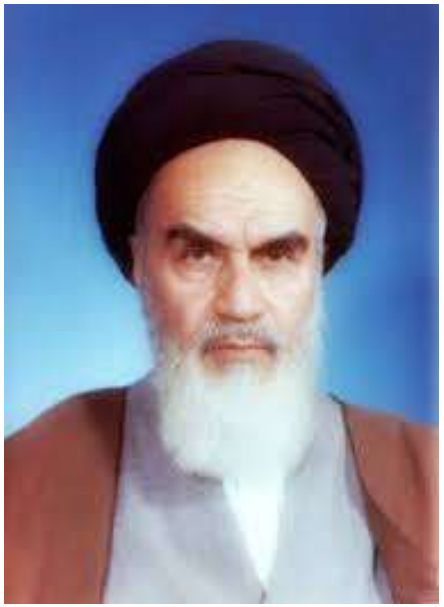
Wilāyat al-Faqīh
Khomeini's Move: From Guardianship to Government

Core Argument (Ḥukūm Islāmī)
- Islam is a complete legal system.
- Law requires enforcement.
- Enforcement requires a state.
- During the Occultation, qualified jurists must govern.

"The governance of the faqīh is a rational and extrinsic matter."
"There is indeed no difference between the guardian of a nation and the guardian of a minor."

Key Theoretical Claims
- The Prophet established a government, not just a religion.
- Islamic laws (taxation, penal law, defense) require state power.
- Governance is a **rational necessity** during the Imam's absence.
- The faqīh inherits the governing authority of the Prophet and Imams (minus infallibility).

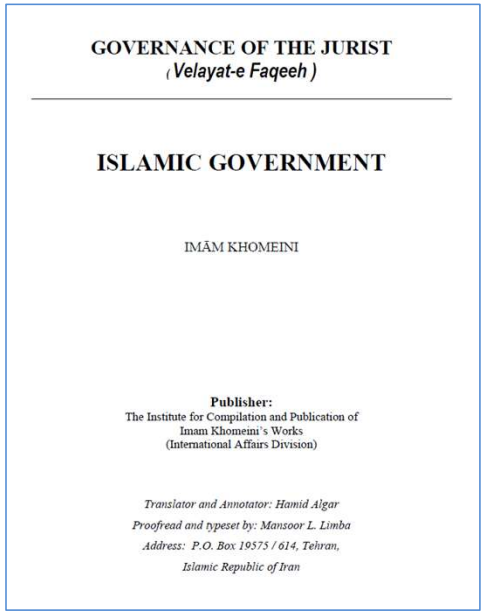
Governance itself becomes a juristic duty.
- The faqīh must exercise executive authority.
- Islamic state formation is religiously obligatory.
- Sovereignty is not suspended — it is delegated.



The jurist's highest duty is not:
- Issuing fatwas
- Leading prayer
- Teaching law

It is:
- Preserving the Islamic state.
- Exercising governance.
- Protecting the Islamic order.
- This is the shift from jurist-as-scholar to jurist-as-sovereign.

“It is our duty to preserve Islam. This duty is one of the most important obligations incumbent upon us; ***it is more necessary even than prayer and fasting***. It is for the sake of fulfilling this duty that blood must sometimes be shed. …. Do not say, “We will wait until the coming of the Imam of the Age (‘a).” ***Would you consider postponing your prayer until the coming of the Imam? The preservation of Islam is even more important than prayer.*** Do not follow the logic of the governor of Khumayn who used to say, “We must promote sin so that the Imam of the Age (‘a) will come. If sin does not prevail, he will not manifest himself!” ***Do not sit here simply debating among yourselves.*** Study all the ordinances of Islam and propagate all aspects of the truth by writing and publishing pamphlets. It cannot fail to have an effect, as my own experience testifies.”


GOVERNANCE OF THE JURIST
(Velayat-e Faqeeh)

ISLAMIC GOVERNMENT

IMĀM KHOMEINI

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Islam Is Not Withdrawal from Politics

“Present Islam to the people in its true form, so that our youth do not picture the akhunds sitting in some corner in Najaf or Qom, studying jurisprudence and menstruation and postpartum bleeding instead of concerning themselves with politics, and draw the conclusion that religion must be separate from politics.”

Wilāyat al-Faqīh (Guardianship of the Jurist)

- Full executive authority
- Head of state
- Control over military
- Oversight of legislature
- Sovereign authority in absence of Imam
- Now we have political rule.

The ruler must be both legally knowledgeable (*faqīh*) and just (*ʿādil*).

This doctrine becomes constitutionalized in the Islamic Republic of Iran.

Najaf vs. Wilāyat al-Faqīh

Najaf Position (Quietist Mainstream)

Grand Ayatollah Abu al-Qasim al-Khuʾi (Grand Ayatollah from 1970-1991)

- Accepted limited guardianship (ḥisbiyya, qaḍāʾiyya)
- Rejected political sovereignty of jurists

Grand Ayatollah Ali al-Sistani (Grand Ayatollah from 1993-present)

- Supports constitutional and democratic process
- Emphasizes popular legitimacy
- Rejects direct clerical rule of the state

Core Principle:

Clergy guide morally and legally — they do not rule politically.

Not Unanimous Even in Qom

- Senior scholars (e.g., Shariatmadari; later Montazeri in modified form) opposed or limited absolute guardianship
- Debate over juristic sovereignty continues within Shiʻi law

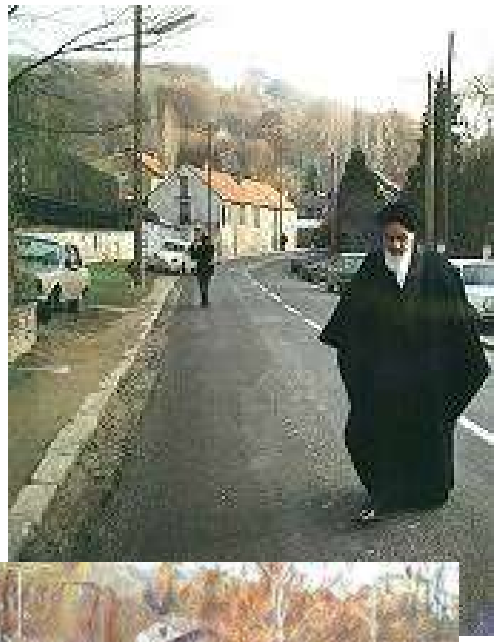
Ayatollah Rūḥollāh Mūsavī Khomeinī (1902–1989)
Founder of the Islamic Republic of Iran

Born: Khomein (central Iran)

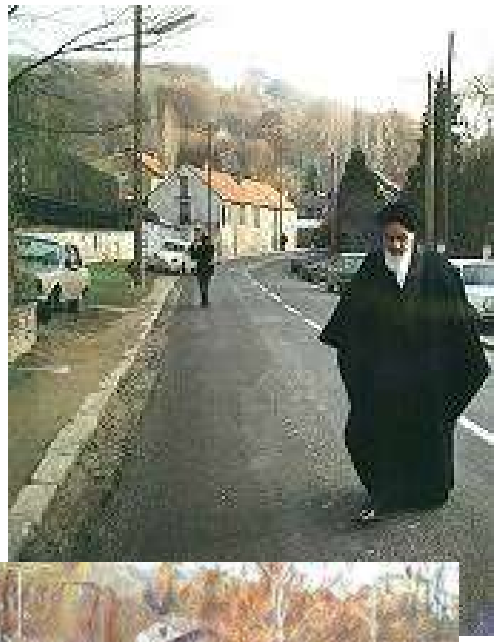
Studied in Arak, then Qom (major Shiʻi seminary center)

Opposition to the Shah:
- Criticized Mohammad Reza Shah's secular reforms (1963).
- Arrested and exiled in 1964.

Exile (1964–1979):
- **Turkey** (1964–65)
- **Najaf, Iraq** (1965–1978)
  - Delivered the lectures later compiled as ***Hukūmat-e Islāmī (Islamic Government / Wilāyat al-Faqīh)***
  - Recorded, transcribed, circulated secretly in Iran
- **Paris (Neauphle-le-Château), France** (1978–1979)
  - From here he coordinated the revolution.



- Prior to 1978, Khomeini spoke of “Islamic government.”
- In Paris (1978), he used term “Islamic Republic.”
- Initially emphasized:
  - People elect president.
  - Clergy advisory role.
  - Did not publicly stress wilayat al-faqih.



Return to Iran:

- February 1, 1979
- Revolution succeeds; monarchy collapses.

From Revolution to Constitution (1979)

February 1979 – Interim Government

- Appointed by: Ayatollah Khomeini
- Prime Minister: Mehdi Bazargan (1907–1995)
  - French-educated engineer
  - Devout but **liberal Muslim**
  - Advocated:
    - Constitutional democracy
    - Rule of law
    - Limited clerical governance

April 1–2, 1979 – Referendum on "Islamic Republic"

- Question: "Islamic Republic — Yes or No?"
- Turnout: ~90-98%
- Result: ~98.2% voted "Yes"
- The structure of government was not yet defined.

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Summer 1979 – Draft Constitution

- Initial draft resembled European constitutional models.
- **Did NOT include Wilāyat al-Faqīh.**
- No special constitutional supremacy for clergy.

Fall 1979 – Assembly of Experts Revision

- Assembly largely composed of clergy.
- Introduced **Wilāyat al-Faqīh** into constitution.

December 2–3, 1979 – Constitutional Referendum

- Turnout: ~75%
- Result: ~99.5% approved
- Constitution formally enshrines:
  - Supreme Leader
  - Guardian Council
  - Clerical oversight of legislation and elections

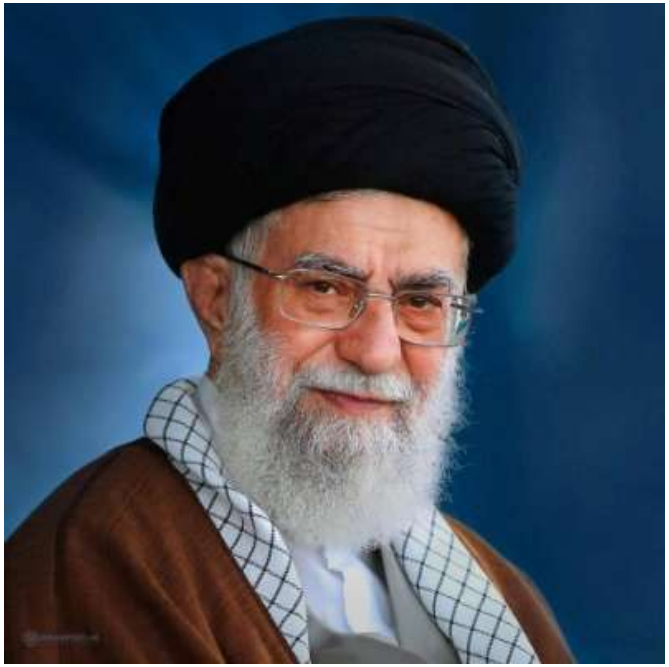
War, Securitization & Repression (1980–1988)

Iran–Iraq War
September 22, 1980 – Iraq invades Iran
War lasts until August 20, 1988 (UN ceasefire takes effect)
Eight-year total war mobilizes Iranian society and militarizes the state.
Death toll ~1,000,000 across both sides

Internal Armed Opposition
Early–Mid 1980s
Militant opposition groups (especially the People's Mujahedin / MEK) engage in armed struggle.
1987–1988: MEK operates from Iraq with Iraqi support during final phase of war.
Revolutionary courts prosecute and imprison thousands of political opponents.

1988 Mass Executions
July–September 1988
Following Iran's acceptance of UN ceasefire and MEK's cross-border attack (Operation Mersad, July 1988).
Approximately 3,000–5,000 prisoners executed (estimates vary).
Often described as one of the darkest episodes in the Islamic Republic's history.

Khomeini dies in 1989

After 1989: Consolidation & Securitization

- 1989 constitutional revision strengthens **Wilāyat al-Muṭlaqa al-Faqīh (Absolute Guardianship)**
- Removed requirement that the Supreme Leader be a marjaʿ
- Supreme Leader's authority expanded:
  - Greater control over armed forces
  - Power to resolve disputes between branches
- Increasing role of:
  - **Guardian Council** (vetoing legislation, candidate vetting)
  - Security apparatus and Revolutionary Guards
- Shift from revolutionary charisma to institutionalized, securitized governance.